

HOUSE BILL 2428

By Capley

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to first responders.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-116(c)(1), is amended by deleting the subdivision and substituting:

(A) Assault against a law enforcement officer or first responder under subsection (a) is a Class E felony, and shall be punished by a mandatory fine of ten thousand dollars (\$10,000) and a mandatory minimum sentence of sixty (60) days incarceration. The defendant is not eligible for release from confinement until the defendant has served the entire sixty-day mandatory minimum sentence.

(B) Assault against a nurse under subsection (a) is a Class A misdemeanor, and shall be punished by a mandatory fine of five thousand dollars (\$5,000) and a mandatory minimum sentence of thirty (30) days incarceration. The defendant is not eligible for release from confinement until the defendant has served the entire thirty-day mandatory minimum sentence.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.